

WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator

Issues paper: questions for the Respondent | Appellant | Provided to the Respondent on 1 October 2026

This paper is provided to the Respondent. It sets out, for each stressor as a whole, the facts the Respondent has admitted and the questions arising from its outlines of evidence of 24 September 2026, for the second conference under section 552A of the *Workers' Compensation and Rehabilitation Act 2003* that the Appellant has asked the Commission to list. The Appellant has told the Commission that the paper is available to it if it would assist. The Appellant would be grateful for the Respondent's position on each question (using the response schedule at section 7) and on each action listed in section 6, by 15 October 2026, or at the conference. Fact numbers are those of the Appellant's notice to admit facts of 28 August 2026, as answered by the Respondent on 8 September 2026. Tab numbers are those of Annexure A to that notice. "SOFC" is the Respondent's amended statement of facts and contentions dated 13 May 2026.

1. The admissions

The Respondent admitted 298 of the 303 facts. The other five were not admitted, and none was denied. 29 of the 39 documents annexed to the notices are admitted or confirmed. No admission has been withdrawn. The Respondent has served outlines of evidence for four lay witnesses and no medical or expert evidence; the time for that material expired at 4.00 pm on 30 September 2026.

The admitted facts are of three kinds, and each is relied on only for what it establishes: facts about events (for example, the seven-hour break, facts 226 and 284); facts that a document contains particular words, which admit the words and not necessarily every event the words describe; and facts that the SOFC does not allege a matter, which record the state of the Respondent's pleading. The facts not admitted (154 and 228 to 231) remain in issue.

2. What can be closed, by agreement or at the conference

	Matter	What would close it
A	The ten documents not yet admitted or confirmed (Tabs 1, 5, 17 to 19, 21, 22, 23, 24 and 31)	An agreed list of documents to be tendered without further proof: the nine held by Metro South Health once it provides its copies; Tab 24 (the Together Queensland email of 3 November 2025) by agreement or through Ms Conaghan, a recipient of it. First raised with the Respondent by letter of 9 September 2026
B	Facts 228 to 231: the 2024 Emergency Code Register entries for 17 to 19 March 2024	Production of the MET call spreadsheet that Metro South Health, in its letter of 5 June 2026, states "is available for the period 17-18 March 2024" (fact 268), and identification of the register and entries on which the Respondent relies for those dates. The spreadsheet may not cover every code type or date
C	The medical evidence	Which medical propositions remain in dispute; which documents in the Appellant's schedule of medical documents relied upon (served 9 September 2026) can be received by agreement; and whether the Respondent requires Dr Krishnaiah and Dr Hawes to give oral evidence
D	SOFC [27]: the management action said to be reasonable	The Respondent to identify, action by action, the management action relied on under section 32(5), the evidence relied on for each, and its alleged connection with the injury (section 6). SOFC [27] does not identify, by particular, date, document or cross-reference, the management action relied upon (fact 303)
E	Documents referred to in the Respondent's outlines of evidence	Production, to the extent not already disclosed, including the Technical Support advice referred to by Ms Wright, the email of 15 May 2024 at 4:12 pm referred to by Ms Reese, and the Human Resources advice on which Ms Taylor and Ms Reese say they acted. These were requested from the Respondent by the Appellant's letter of 25 September 2026
F	Matters that can be agreed in writing	Any fact or document that the parties agree in writing, so that the Commission may dispense with evidence on it under rule 48 of the <i>Industrial Relations (Tribunals) Rules 2011</i>

3. Stressor 1: the workplace, as a whole

Stressor 1 is set out below in one table, by its parts (a) to (g), followed by the questions arising. Each question arises where a passage in the Respondent's outlines sits beside a fact the Respondent has admitted.

When	What the admitted record shows	Facts	Interval
Stressor 1(a): the Appellant's duties			
Role description	"Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate"	6	
Role description	"Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups... strictly adhering to protocols and timeframes"	8	
Role description	Pager allocation and repair, "maintaining database and registers with accurate and current information"	7	
Role description	"Maintain call queues to minimum at all times"	5	
Role description	"Maintain discretion and exercise judgement... in situations where precedence have not been set and procedures not defined"	9	

When	What the admitted record shows	Facts	Interval
Role description	"Follow defined service quality standards, occupational health and safety policies and procedures"	12	
Role description	Continuous shift work "over the full 24-hour period, 7 days a week"	2, 13	
Stressor 1(a): the doctors' reports of misrouted calls, and the response			
2 and 3 May 2024	Five misrouted calls (2 May 14:47; 3 May 10:00, 10:22, 11:43, 14:46), including a MET call: "switchboard could not tell them where VHUB was. Had to be redirected by MASPER"	57, 58	
3 May, 3:06 pm	Vivian Kwok, MASPER Registrar, reports them to Ms Taylor, copied to Dr Pan Jane Wong: "I've been requested to email you with the list of switchboard issues"	56	First report
5 to 8 May	Four further occasions (5 May 14:45; 7 May 07:45; 8 May 8:53, 9:59); on 8 May each call "incorrectly put through to MASPER"	60, 61	
8 May, 5:28 pm	Second report to Ms Taylor, copied to Dr Wong	59, 62	Fifth calendar day
9 May, 9:20 am	Ms Taylor replies to the Registrar and Dr Wong	63 to 65	5 days 18 h 14 min after the first report
9 May, 10:15 am	First communication to Switchboard staff ("MASPER process"): "There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams"	66, 67, 69	None alleged before this
	Every occasion occurred while the after-hours arrangement of 15 April 2024 was in force	68	
15 May, 11:47 am	Integrated Respiratory Service asks for the directory to be amended	89, 90	No response alleged before 20 May
20 May, 11:03 am	Reminder: "we continue to get calls put through to us"	91 to 93	Fifth day; no response alleged before 2:05 pm
20 May, 2:05 pm	The Appellant escalates to Ms Taylor, within her stated office hours	94 to 98	3 h 2 min after the reminder; 5 days 2 h 18 min after the first request
20 May, 4:30 pm	Ms Taylor: "this task was being actioned"	100 to 104	2 h 25 min later; 2 h after her stated hours
	No document of that discussion is listed. The directory is not alleged to have been amended by 20 May, nor staff notified of its modification on 22 February 2024	105 to 110	
Stressor 1(a): the restrictions on access to the database and on after-hours changes			
18 Jul 2023, 12:56 pm	Database access removed from all Switchboard staff while the coordinator fixes the database: "I will be removing everyone's access to the database"	39, 40	
18 Jul 2023	The "Contact & Number Changes" book removed from the room	45	
From 18 Jul 2023	Changes only through Ms Stibbard, whose hours were "every Tuesday and second Monday, 8:00 - 16:00", or through Ms Taylor if Ms Stibbard was absent and the change urgent	41 to 43	
From 18 Jul 2023	After hours ("overnights, on the weekend or public holiday"), requests "have to wait until either Chloe or myself are back"	44	
15 Apr 2024, 12:39 pm	New after-hours on-call process, "effective from today"; during office hours, contact Ms Taylor	49 to 52	
To 18 Jun 2024	The Respondent does not allege that database access was restored to the Appellant	55	
Stressor 1(b): the Communication Book			
6 Jun 2023, 9:57 am	Ms Taylor to Logan Switch: the Communication Book "is not used to simply put your point across or make any indirect comments towards the team"	148, 149	
6 Jun 2023, 4:05 pm	Ms Taylor to Ms Reese: "I was not aware of who put this entry in at the time but I took it out... as it was clearly an indirect dig at the team"; "I just feel like it's being used as a 'burn book'"	145 to 147	
Pleading	The Respondent admits Ms Taylor removed pages from the Communication Book on or around 6 June 2023	143, 288	
The book	The removed entry is not identified, and it is not alleged that the page has been located or that a copy exists. The book is not alleged to have left Metro South Health's possession	150 to 153	
Stressor 1(c): the matters raised in August and September 2023			
7 Aug 2023, 12:21 pm	The Appellant emails Ms Taylor, Ms Reese, Ms Conaghan and Ms Smith about his hours and workplace issues, citing clause 11.7 (additional permanent hours), and asks: "Please give me some space"	26, 27, 155	

When	What the admitted record shows	Facts	Interval
7 Aug 2023, 1:43 pm	Ms Taylor: his rostered Monday shift "was an oversight"; she offers to roster him off the next day "to give you the required rest period"	156, 157	
7 Aug 2023, 3:13 pm	Ms Reese: "you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc."	158	
29 Aug to 4 Sep 2023	Ms Reese sends the grievance policy (E12). The Appellant replies that he has spoken to Ms Taylor and they are "seemingly on the path to working in a beneficial way"	160, 161	
Stressor 1(d): the Special Pandemic Leave application, as one sequence			
20 Feb 2024	Request 1. The Appellant tells Ms Taylor he has tested positive for Covid; she asks him to send it to her "so she could submit it in MyHR". The Respondent pleads that Ms Taylor asked him to submit a Special Pandemic Leave request through myHR, attaching a statutory declaration or photo of his test	136; 132	
20 Feb, 11:24 to 11:41 am	Request 2 (myHR submission 1). Draft created and submitted, with the supporting attachment	114, 115; 134	
21 Feb, 12:23 pm	Ms Taylor, as "Reviewer", declines it. Her message: the minimum period for Covid leave was 5 days; the statutory declaration "was sufficient evidence"; resubmit	116, 137, 138	1 day 42 min after submission
28 Feb, 6:07 am	Request 3 (myHR submission 2). The Appellant resubmits	117	6 days 17 h 44 min after the first decline
29 Feb, 9:06 am	Ms Taylor declines it again, on her assessment that the statutory declaration was not attached. A review shows the attachments were present. The Appellant messages that he is confused and did everything as required	118, 133, 134, 139	1 day 2 h 59 min after resubmission
29 Feb, 11:07 am	Request 4 (myHR submission 3). The Appellant resubmits	119	2 h 1 min after the second decline
29 Feb, 11:21 am	Ms Taylor approves it as "Reviewer"	120, 124	13 min 35 s after resubmission
1 Mar 2024, 4:05 pm	Ms Reese approves it as "Manager"	121	1 day 4 h 44 min later
Overall	Four requests, three myHR submissions, two declines by Ms Taylor, then approval	122, 123, 125	10 days 4 h 40 min 20 s from draft to approval
The power	Sub-delegated to a Band 9 delegate, with no further sub-delegation. Neither Ms Taylor nor Ms Reese is alleged to have held it; the person who exercised it is not identified	127 to 131	
Others	No other Switchboard employee is alleged to have been required to submit a Special Pandemic Leave request personally through myHR in February 2024	142	
The Respondent's case	The second decline was "a matter of human error by Ms Taylor on the background of high work demands" (SOFC [14(f)])	135	
Stressor 1(e): the public interest disclosure			
SOFC [15]	The Respondent admits Stressor 1(e)		
Stressor 1(f): the email of 15 May 2024 and the request to retract it, in context			
<i>The directions</i>			
18 Jul 2023	Urgent database changes to go to Ms Taylor when Ms Stibbard is absent; after hours, requests "have to wait until either Chloe or myself are back"	43, 44	
23 Aug 2023	Ms Taylor, "What's Chloe's Hours?!": "I am fulltime and work flex hours"; "My hours would range from starting between 6-9am and finishing 2-5pm". No fixed hours are alleged to have been stated to staff from then until May 2024	71 to 73	
15 Apr 2024	Ms Taylor: "Process during office hours remains the same, please contact myself through switch/office or mobile"	50, 163	
13 May 2024	Ms Stibbard: "During business hours you are to still contact Chloe"	111	
14 May, 12:08 pm	Ms Taylor: "in business hours you are to follow the correct process and speak to me directly... through switch or my office/mobile"	162, 164	
<i>What an emergency call is, and the calls then being misrouted</i>			
The duty	Distributing emergency notifications to the response groups "strictly adhering to protocols and timeframes". Maintaining accurate contact details for medical staff is "a critical function of the Switchboard to ensure effective clinical handover and patient safety" (the Respondent adds that a procedure was in place)	8, 289, 290	

When	What the admitted record shows	Facts	Interval
2 to 8 May 2024	Nine misrouted calls reported by the MASPER Registrar, including a MET call: "switchboard could not tell them where VHUB was. Had to be redirected by MASPER"	56 to 61	
9 May, 9:20 am	Ms Taylor replies to the Registrar	64	5 days 18 h 14 min after the first report
15 May, 11:47 am	The Integrated Respiratory Service asks for the directory to be amended	89, 90	No response alleged before 20 May
<i>The email, and the request to retract it</i>			
15 May, 1:15 pm	The Appellant, "Office Hours and Departmental Directives", to Ms Taylor and Logan Switch, copied to staff, Ms Reese and HR: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times"; and that directives be made in consultation with the team	74, 75	
15 May, 6:23 pm	Ms Reese: the email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct"; she asks him to retract it	76, 77	5 h 8 min later
15 May, 7:09 pm	The Appellant: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours"	78	
<i>What followed</i>			
17 May, 9:30 am	Ms Taylor: her hours "can vary"; "Otherwise my hours are from 06:30-14:30"; she will advise any change weekly	81 to 84, 88	2 days after the email
20 May, 2:05 to 4:30 pm	The Appellant escalates the Respiratory Service misroutes within Ms Taylor's stated hours; she replies two hours after those hours ended	96, 102, 103	
21 May, 2:53 pm	Ms Reese: "I will follow up on the issues raised"; she asks which directives concerned him	79, 80	
18 Jun, 8:58 am	Ms Taylor: "I am taking today off"; "I am sorry I haven't been there for you all over the past week"; "Tammy is in the office if anything urgent"	85 to 87	
Stressor 1(g): the union delegate role			
31 Aug 2023	The Appellant's written application for full-time hours records his "advocacy to become a union representative for the switchboard department"	30 to 32	
5:03 pm text (date not stated in the admission)	The Respondent admits the Appellant texted Ms Taylor that he was "just putting his hand up"; it says this was not a formal notification	294	
Policy	The Union Encouragement Policy requires managers to take a "positive, supportive role" to facilitate union membership and delegate elections (admitted as "words to that effect")	293	
3 Nov 2025	The Appellant is endorsed as a workplace delegate	178, 179	

Questions arising: Stressor 1

	Question for the Respondent	The admitted record
<i>Stressor 1(a)</i>		
1	Was any consultation or assessment undertaken before the processes of 15 and 19 April 2024 took effect and, if so, what document records it (SOFC [11]; outline of Ms Taylor)?	Ms Taylor's email of 15 April 2024: "This new process is effective from today" (facts 49 to 53; Tab 6, confirmed 24 September 2026). A further new process from 19 April 2024 (fact 54). No clause 6.2 agreement or ballot is alleged (facts 180, 181). The Chief Executive's letter of 5 June 2026: fatigue risk assessment at the switchboard "occurred after 30 June 2024" (fact 264; Tab 20, confirmed)
2	Does the Respondent maintain its non-admission of Stressor 1(a) (SOFC [11])?	The Stressor 1(a) rows of the table in section 3, every entry admitted. The duties to maintain the database (fact 6) and to distribute emergency notifications "strictly adhering to protocols and timeframes" (fact 8) fell to be performed after database access was removed on 18 July 2023 (fact 40), and the Respondent does not allege it was restored (fact 55)
3	What action does the Respondent say was taken on the reports of 3, 8, 15 and 20 May 2024 before the Appellant's email of 20 May 2024 at 2:05 pm, and what document records it?	No communication to staff is alleged before 9 May at 10:15 am (fact 69). No response to either Integrated Respiratory Service email is alleged before the Appellant's escalation (facts 90, 93). No document of the 20 May discussion is listed (fact 105)
4	Does the Respondent rely on Metro South Health's statement that there were "no 'consequential' changes to operating procedures" (fact 266)?	New processes of 15 April (facts 49 to 53), 19 April (fact 54) and 9 May 2024 (fact 66). Complaints were "managed solely via email or verbally" (fact 267)
<i>Stressor 1(b)</i>		
5	Where is the Communication Book, and will the Respondent produce it, including the pages for June 2023?	The book is not alleged to have left Metro South Health's possession during the Appellant's employment (fact 153). The Respondent does not admit that its amended List of Documents omits it (fact 154)
<i>Stressor 1(d)</i>		
6	For process 15480560, will the Respondent identify each approval stage, the person who acted at each stage and the date, and the holder of the delegated power? Ms Earl's outline states it was approved on 29 February 2024 'by the delegate and manager'	SOFC [14] states the attachments were present. Ms Taylor had noted the statutory declaration "was sufficient evidence" (fact 138) and declined the application twice (facts 116, 118, 123). It was approved by Ms Taylor as reviewer on 29 February and Ms Reese as manager on 1 March 2024 (facts 120, 121). The power was sub-delegated to Band 9 and could not be sub-delegated further (facts 127, 128); it is not alleged that Ms Taylor or Ms Reese held it (facts 129 to 131)
7	Does the Respondent maintain that the handling of the application from 20 February to 1 March 2024, taken as a whole, was not unreasonable management action (SOFC [14])?	Four requests and three myHR submissions of the same application. Two declines, the second on the ground that the statutory declaration was not attached; the Respondent pleads that the attachments were present (fact 134), and Ms Taylor had already said the statutory declaration was sufficient (fact 138). The third submission was approved in 13 minutes 35 seconds (fact 124). The whole took 10 days 4 hours 40 minutes (fact 125). The power was not alleged to be held by either person who acted on it (facts 127 to 131)
<i>Stressor 1(f)</i>		
8	Does the Respondent maintain that on 13 to 15 May 2024 the Appellant failed to follow the on-call notification process (SOFC [16(b)]; outline of Ms Taylor)?	Ms Taylor's email of 15 April 2024: contact her "through switch/office or mobile" (facts 50, 163). Her email of 14 May 2024: "either through switch or my office/mobile" (facts 164, 165). It is not alleged that the Appellant was told, before 14 May 2024, that notifying his unavailability by telephoning the Switchboard did not comply (fact 166)
9	Does the Respondent maintain that the Appellant's email of 15 May 2024 was an accusation (outline of Ms Reese)?	The Appellant was directed to contact Ms Taylor during office hours (facts 50, 111, 162), and her own email said her hours ranged from a 6 to 9am start to a 2 to 5pm finish (facts 71, 72), with no fixed hours stated to May 2024 (fact 73). The request came while emergency and clinical calls were being misrouted (facts 56 to 61, 89) in a function admitted to be critical to patient safety (fact 289). Ms Reese, 21 May 2024: "I will follow up on the issues raised" (fact 79). Ms Taylor published her hours two days after the email (facts 81 to 84)

4. Stressor 2: pay, as a whole

When	What the admitted record shows	Facts	Interval
Stressor 2(a): entitlements			
Award	Section 23 of the Award: an employee rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day "shall be paid an additional day's wage or be granted a day's holiday in lieu" (as recorded by the Review Unit)	241	
1 May 2024	Payroll "still reviewing" his public holiday entitlements from his part-time period; Ms Taylor confirms that since full-time employment all "public holidays not required" payments had been processed	255, 256	
Feb to Apr 2024	Payroll records shift and hours errors across four fortnights (see Stressor 2(b) below)	185 to 189	
Stressor 2(b): the pay corrections and the AVAC, as one sequence			
Fortnights from 5 Feb 2024	Payroll records: a 7-hour shift on 9 February instead of 8 (AVAC PRN 15397775) and on 28 February (AVAC PRN 15605601), each topped up from his RDO balance; the fortnight of 18 March "has too many ordinary shifts... resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime"; the fortnight of 1 April the same, 0.95 hours	185 to 189	
8 Apr 2024	The Appellant asks Ms Taylor to review his pay for 8 to 31 March 2024	242	First request
1 May 2024	Payroll is "still reviewing" his public holiday entitlements from his part-time period	255	
3 May 2024	Payroll (Ms Grant) to Ms Taylor, copied to the Appellant: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended"	183 to 190, 296	25 days after the request
10 May, 2:21 pm	The Appellant writes to payroll	191	
13 May, 8:21 am	Payroll: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC"	192, 193	10 days after the instruction
21 May, 12:33 pm	Ms Taylor: "still... waiting payroll confirmation about a few of these payroll issues"; she will submit an AVAC "for next pay run"	194, 195, 298	18 days after the instruction
28 May, 8:36 am	Ms Taylor asks him to sign a "Validation of claims older than 3 months" so she can "escalate for delegate approval"	196, 197	
28 May 2024	Ms Taylor submits the AVAC (16450619), effective 30 March 2024; processed 30 May; status "Part Completed"	203, 209, 297	25 days after the instruction; 50 days after the request
Feb to May 2024	All five AVACs in the period were initiated by Ms Taylor; none by the Appellant. AVAC PRNs 15397775 and 15605601, cited by payroll, do not appear in the myHR report	199 to 201, 210	
The Respondent's case	Discrepancies "remedied in a timely manner"; "no outstanding underpayments"; Ms Taylor "submitted the AVAC on 28 May 2024" (SOFC [20(c)], [20(f)], [21(c)])	207 to 209	

Questions arising: Stressor 2

	Question for the Respondent	The admitted record
10	Will the Respondent provide a dated reconciliation of each adjustment and payment for the fortnights from 5 February to 28 May 2024, showing the amount and date of each correction and any balance (SOFC [20(c)], [20(f)]; outline of Ms Wright)?	Payroll asked the line manager for AVACs on 3 May 2024 (facts 183 to 190). On 13 May payroll could not see that any had been corrected (facts 192, 193). The AVAC was submitted on 28 May 2024 (fact 297), with claims "older than 3 months" (fact 197), and is recorded as "Part Completed" (fact 203), a status the record does not explain. Two AVAC process numbers cited by payroll do not appear in the myHR report (fact 210)
11	Does the Respondent maintain that the handling of the pay corrections from 8 April to 28 May 2024, taken as a whole, was reasonable (SOFC [20], [21])?	The request of 8 April (fact 242); payroll's instruction to the line manager on 3 May (facts 183 to 190); nothing corrected by 13 May (fact 193); the AVAC submitted on 28 May, 25 days after the instruction and 50 days after the request (fact 297), with claims "older than 3 months" (fact 197), and recorded as "Part Completed" (fact 203). Only the line manager initiated AVACs (facts 199 to 201)

5. Stressor 3: the break of 17 to 18 March 2024, as a whole

The seven-hour break is admitted by both parties (facts 226, 284). The sequence around it, from the agreement relied on to the response to the Appellant's request, is set out below. The emergency codes shown are only those recorded during the two shifts, from Tab 31, the Appellant's capture of Metro South Health's "2024 Emergency Code Register". Facts 228 to 230 are not admitted; Metro South Health states that the MET call spreadsheet for 17 and 18 March 2024 is available (fact 268).

When	What the record shows	Facts	Interval
The rule and the agreement			
Standing rule	The Award and the employer's policy require a minimum break of 10 hours between shifts, or 8 hours by written agreement	285, 257	
17 Jun 2020	The Appellant signs an agreement allowing an 8-hour break	17	
Jun 2020	The fatigue leave policy: problems "can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day"	239, 240	
Sep to Oct 2023	The Appellant moves to permanent full-time hours from 16 October 2023; the employer confirms a "change to your employment contract and adjustments in your working hours"	37, 38, 20	
To 18 Mar 2024	No review, re-execution or re-confirmation of the agreement is alleged; nor that he was told, before 1 May 2024, that it could be terminated	21, 22	
7 Jul 2026	Metro South Health Human Resources: the agreement "is only applied where staff initiated shift swaps have occurred". No swap is alleged for 17 and 18 March 2024	225, 234	
The shift pairing, and the emergency codes recorded during the shifts			
17 Mar 2024 (Sunday)	Rostered to finish at 23:00. No clause 6.2 agreement is alleged for this rostering	284, 180	
17 Mar 2024, evening, before the shift ended at 23:00	Emergency Code Register: 19:16 MET CALL WARD 2H BED 7; 19:20 CODE BLUE WARD 2H BED 7; 21:16 MET CALL WARD 2Q BED 5	228 (not admitted); Tab 31; 268	
18 Mar 2024 (Monday)	Rostered to start at 06:00. A break of 7 hours	284, 227, 258, 259	
18 Mar, 06:00 to 14:00	Six codes: 08:48 CODE GREY QAS TRIAGE AIRLOCK; 09:20 MET CALL WARD 6A BED 8; 11:31 MET CALL WARD 3DR BED 14; 11:32 CANCELLED MET CALL WARD 3DR BED 14; 11:35 NEONATAL MET CALL THEATRE 2; 13:09 NEONATAL MET CALL BIRTH SUITES 5	229, 230 (not admitted); Tab 31; 268	
19 Mar 2024	Sick leave, 7.6 hours, approved	235	
The request, the response, and what followed			
8 Apr 2024	The Appellant asks Ms Taylor to review his pay for 8 to 31 March 2024, citing the 10-hour minimum	242, 243	
9 Apr 2024	Ms Taylor escalates the fatigue leave enquiry to Human Resources, and asks him to raise concerns as soon as they arise	244, 245	
24 Apr 2024	The Appellant: "more than 2 weeks without any response or overtime payment"	246	No response alleged between 9 April and 1 May (fact 250)
1 May 2024	Ms Taylor: after consulting payroll and Human Resources, the fatigue payment "would not be processed due to the existing 8-hour agreement"; "you are able to terminate this agreement going forward"	247, 248	23 days after the request (fact 249)
1 May 2024, 1:18 pm	The Appellant sends Ms Reese the fatigue toolkit in the Operations Manual	214	
10 May 2024	Ms Reese to Human Resources: his concern is "how it is impacting on staff fatigue, or more specifically his fatigue"; the roster risk rating is "at best... 11 which is moderate"	218, 219	
20 May 2024	Ms Reese follows up with Human Resources, attaching the Fatigue Risk Management Systems guideline	222, 223	
24 Oct 2024	The Respondent's Review Unit: "uncertainty" whether the agreement applied; the rostering "amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement"	254, 260	
To 30 Jun 2024	No fatigue risk assessment, training or implementation at the Switchboard is alleged. The Chief Executive: the assessment "occurred after 30 June 2024"	264, 269 to 271	

Questions arising: Stressor 3

	Question for the Respondent	The admitted record
12	Does the Respondent maintain that the 2020 eight-hour agreement applied to the shifts of 17 and 18 March 2024 (SOFC [22(e)]; outlines of Ms Taylor, Ms Reese and Ms Wright)?	The rows under "The rule and the agreement" in section 5. No swap is alleged (fact 234); Human Resources limits the agreement to staff-initiated swaps (fact 225). The break was seven hours, less than eight on any view (facts 258, 259, 284)
13	Does "not intentional or repeated" mean that no further seven-hour break occurred, or that no other rostering error affected the Appellant's line (SOFC [22(a)]; outline of Ms Taylor)?	Ms Reese, 7 August 2023: "a rostering error that was accidentally made by Chloe with regards to night shifts" (fact 287). Ms Taylor, 7 August 2023: "this was an oversight" (fact 156). Ms Reese, 26 April 2024: Ms Taylor "was working to fix this error" (facts 211, 212). Ms Reese to Human Resources, 10 May 2024: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters" (fact 220)
14	What reason was given at the time for declining the fatigue payment for 18 March 2024, and on what grounds does the Respondent now rely: the 2020 agreement, clause 18.10 of the Award, or both?	The reason given on 1 May 2024 was "the existing 8-hour agreement" (fact 247). SOFC [24(b)] pleads clause 18.10, "because he was not performing overtime" (fact 237). Payroll, 3 May 2024, of the fortnight of 18 March 2024: it "has too many ordinary shifts... as one of the shifts needs to be overtime" (fact 188)
15	Which management action does the Respondent say was reasonable in respect of the break, the 23-day response, and the advice that the agreement could be terminated "going forward"?	The Review Unit found the rostering "unreasonable management action" (fact 260). Payroll's advice, in the outline of Ms Wright: "a rostering practice issue for the line manager". The advice that the agreement could be terminated "going forward" (fact 248). SOFC [27] does not identify, by particular, date, document or cross-reference, the management action relied upon (fact 303)

6. The Respondent's settled position under section 32(5): each action, and the course

SOFC [27] contends that any management action involved in the causation of any injury was reasonable management action taken in a reasonable way. SOFC [27] does not identify, by particular, date, document or cross-reference, the management action relied upon (fact 303). Explanations appear elsewhere in the SOFC and in the outlines. As particulars of that contention, the Respondent is asked to state its settled position on each action below, separately: whether it says the action was management action, and, if so, whether it says the action was reasonable and taken in a reasonable way. Where the answer is yes to both, the Respondent is asked to identify the facts relied on. Row L asks the same questions of the course of conduct that the actions at rows A to E, J and K form when taken together.

	Stressor	Action (admitted facts)	Management action? (yes / no)	Reasonable and taken in a reasonable way? (yes / no)
Stressor 1				
A	1(a)	Removal of database access from all Switchboard staff, and of the "Contact & Number Changes" book, 18 July 2023, without restoration alleged (facts 40, 45, 55)		
B	1(a)	Changes routed only through Ms Stibbard or Ms Taylor, with after-hours requests to "wait until either Chloe or myself are back" (facts 41 to 44)		
C	1(a)	The after-hours on-call process "effective from today", 15 April 2024 (facts 49 to 52, 180, 181)		
D	1(a)	The response to the MASPER Registrar's reports of 3 and 8 May 2024 (facts 56 to 69)		
E	1(a)	The response to the Integrated Respiratory Service, 15 to 20 May 2024 (facts 89 to 110)		
F	1(b)	Removal of the Communication Book entry, June 2023 (facts 143 to 147)		
G	1(d)	The handling of the Special Pandemic Leave application from 20 February to 1 March 2024, taken as a whole: four requests, three myHR submissions, two declines, approval after 10 days 4 hours 40 minutes (facts 114 to 142; SOFC [14])		
H	1(f)	The request of 15 May 2024 that the Appellant retract his email (facts 74 to 79)		
Stressor 2				
I	2(b)	The handling of the pay corrections from 8 April to 28 May 2024, taken as a whole: the AVAC submitted 25 days after payroll's instruction and 50 days after the request, "Part Completed" (facts 183 to 210, 242, 297)		
Stressor 3				
J	3	The rostering of 17 and 18 March 2024 with a seven-hour break. The Respondent's review decision found it "unreasonable management action" (facts 226, 258 to 260, 284)		
K	3	The response of 1 May 2024 declining the fatigue payment, 23 days after the request, and the advice that the agreement could be terminated "going forward" (facts 242 to 250)		

	Stressor	Action (admitted facts)	Management action? (yes / no)	Reasonable and taken in a reasonable way? (yes / no)
The course of conduct				
L	1(a), 3	The course of conduct, taken together: responsibility for the database, the distribution of emergency notifications and continuous 24-hour shift work (facts 2, 6, 8, 13); database access removed from 18 July 2023 and not alleged to have been restored (facts 40, 55); the seven-hour break of 17 to 18 March 2024 and the response to the Appellant's request (facts 242 to 250, 284); other rostering errors on his line (facts 156, 211, 212, 220, 287); and no fatigue risk assessment, training or implementation at the Switchboard before 30 June 2024 (facts 264, 269 to 271)		

7. Response schedule for the Respondent

By 15 October 2026, for each question, the Respondent is asked to indicate whether the position is maintained or not maintained or, for questions 1, 3, 5, 6, 10, 13, 14 and 15, to answer it. A matter not maintained can be recorded as no longer in issue.

Q	Matter	Respondent's position
Stressor 1		
1	Consultation or assessment before the processes of 15 and 19 April 2024, and the document recording it (SOFC [11])	
2	Non-admission of Stressor 1(a) (SOFC [11])	
3	Action taken on the reports of 3, 8, 15 and 20 May 2024 before 2:05 pm on 20 May, and the document recording it	
4	Reliance on "no 'consequential' changes to operating procedures" (fact 266)	
5	The location and production of the Communication Book	
6	Each approval stage of process 15480560, who acted, when, and the holder of the delegated power (SOFC [14])	
7	The Special Pandemic Leave sequence, taken as a whole, as not unreasonable management action (SOFC [14])	
8	The on-call notification process, 13 to 15 May 2024 (SOFC [16(b)])	
9	The Appellant's email of 15 May 2024 as an accusation (outline of Ms Reese)	
Stressor 2		
10	A dated reconciliation of each pay adjustment and payment, 5 February to 28 May 2024 (SOFC [20])	
11	The pay corrections, 8 April to 28 May 2024, taken as a whole, as reasonable (SOFC [20], [21])	
Stressor 3		
12	Application of the 2020 eight-hour agreement to 17 and 18 March 2024 (SOFC [22(e)])	
13	The meaning of "not intentional or repeated" (SOFC [22(a)])	
14	The reason given at the time for declining the fatigue payment, and the grounds now relied on (SOFC [24(b)])	
15	The management action said to be reasonable in Stressor 3 (SOFC [27])	

8. The Appellant's position

The Appellant invites the Respondent to consider its position on each question in light of the admitted record. Where a position is maintained, the Appellant will address it at the hearing by reference to the admitted facts and the evidence. The Appellant can provide the notices, the responses and any document referred to in this paper if required.



Cory Lea Shepherd
Appellant, self-represented